



Republic of the Philippines
Province of Laguna
City of Biñan

OFFICE OF THE CITY COUNCIL SECRETARY

2nd Floor City Annex Bldg., Brgy. Zapote, City of Biñan, Laguna
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ORDINANCE APPROVED BY THE CITY COUNCIL OF BIÑAN, LAGUNA IN ITS REGULAR SESSION HELD AT THE AMBROSIO RIANZARES BAUTISTA HALL AT CITY HALL ANNEX BUILDING, BARANGAY ZAPOTE, CITY OF BIÑAN, PROVINCE OF LAGUNA DATED APRIL 30, 2024.

PRESENT:

Hon. JONALINA R. REYES	- Acting Vice-Mayor
Hon. LIBUNERO O. ALATIIT	- Councilor
Hon. ROMMEL R. DICDICAN	- Councilor
Hon. FLAVIANO D. PECAÑA, JR.	- Councilor
Hon. CHRISTOPHER A. ALBA	- Councilor
Hon. JAYSON A. SOUZA	- Councilor
Hon. VICTOR L. CARIÑO	- Councilor
Hon. ELMARIO B. DIMARANAN	- Councilor
Hon. RAFAEL L. CARDEÑO, JR.	- Councilor
Hon. ALVIN Z. GARCIA	- Councilor
Hon. ELVIS L. BEDIA	- Councilor
Hon. JOSE FRANCISCO RUBEN P. YATCO	- Councilor
Hon. GEMINIANO B. CATALON	- ABC-Federation President
Hon. ALONZO KYNE S. GARCIA	- SK-Federation President
GERONIMO D. ROMANTIGUE, MDMG	- City Council Secretary

GUESTS:

Mr. Jaime M. Salandanan	- Former Councilor
Legislative Staff of the City Government of Biñan	

ABSENT:

Hon. ANGELO B. ALONTE	- City Vice Mayor (Vacation Leave)
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CITY ORDINANCE NO. 7- (2024)

AN ORDINANCE ORGANIZING THE OFFICE OF THE CITY BUILDING OFFICIAL AS A SEPARATE AND DISTINCT DEPARTMENT FROM THE OFFICE OF THE CITY ENGINEER, AND CREATION OF THE FOLLOWING POSITIONS HEREOF UNDER THE SAID OFFICE: CITY GOVERNMENT DEPARTMENT HEAD I- SG 25/1 (CITY BUILDING OFFICIAL), ENGINEER I - SG 12/1, ADMINISTRATIVE AIDE I – SG 2/1, ADMINISTRATIVE AIDE III – SG 3/1, DEFINING ITS FUNCTIONS, APPROPRIATING FUNDS THEREFORE, AND FOR OTHER PURPOSES.

WHEREAS, Section 458 (a) (1) (vii) of Republic Act No. 7160, otherwise known as the Local Government Code of 1991, provides that the Sangguniang Panlungsod has the power to determine the powers and duties of officials and employees of the city, subject to the provisions of the Local Government Code of 1991 and pertinent laws;

WHEREAS, Section 16 of the Local Government Code also provides that local government units shall exercise the powers expressly granted; those necessary implied therefrom, as well as the powers necessary, appropriate, or incidental, for efficient and effective governance and those which are essential for the promotion of the general welfare;

WHEREAS, Section 455 of the same Code expressly empowers the City Mayor to exercise general supervision and control over all programs, projects, services, and activities of the city government and is mandated to appoint all officials and employees whose salaries and wages are wholly or mainly paid out of city funds and whose appointments are not otherwise provided for in the said Code, as well as those he may be authorized by law to appoint;

WHEREAS, the same Section of the Code vests upon the City Mayor the power to enforce all laws and ordinances relative to the governance of the city and issue such executive orders for the faithful and appropriate enforcement and execution of laws and ordinances;

WHEREAS, the Biñan City Engineer concurrently acts as the City Building Official pursuant to Section 477 of R.A. No. 7160. Such concurrent arrangement creates operational difficulties with the heavy workload arising from the demands of the dual position concurrently held significantly contributing to the current problem;

WHEREAS, the National Building Code Development Office, Office of the Secretary, Department of Public Works and Highways certified that other Cities have created a separate Office of the Building Official with professional staff, with the main functions and responsibility to carry out the provisions of Presidential Decree No. 1096, otherwise known as the National Building Code of the Philippines and Its Implementing Rules and Regulations, as well as the enforcement of orders and decisions made pursuant thereto;

WHEREAS, there is an urgent necessity to immediately address the problem to prevent further damage and prejudice to the public, thereby restoring efficient and effective public service vis a vis the implementation of the provisions of the National Building Code, and ultimately maintaining the confidence of the people to the city government;

WHEREAS, the creation and organization of the OFFICE OF THE CITY BUILDING OFFICIAL as a separate and distinct department from the Office of the City Engineer is a viable solution to the problem. It is noteworthy that other highly urbanized cities like the City of Manila, Parañaque City, Caloocan City, and Quezon City, to name a few, have already created their very own Office of the Building, which are officially separate and distinct from the Office of the City Engineer;

WHEREAS, under Section 454 of said Local Government Code the creation of other offices or departments as may be necessary to carry out the purposes of the city government, is primarily lodged with the Sangguniang Panlungsod. This is accomplished through the passage of an ordinance, the enactment of which will certainly take some changes for the operation of the affected offices;

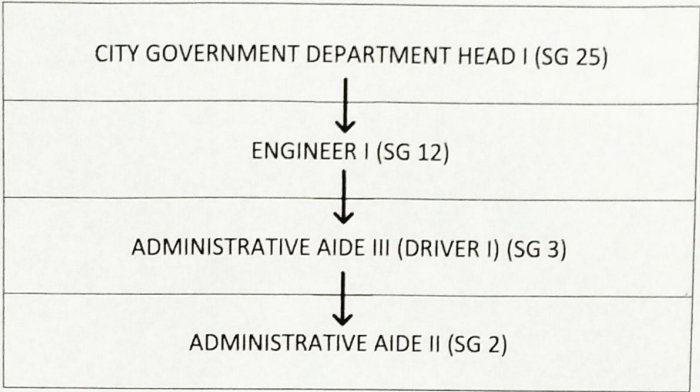
WHEREAS, the current situation necessities immediate executive action by the City Mayor pending the eventual passage of the ordinance;

WHEREAS, there is a need to enact measures that will effectively discharge and define the functions of the City Building Official to ensure implementation of Presidential Decree No. 1096 and its Implementing Rules and Regulations and other laws consistent thereto.

NOW, THEREFORE, be it ORDAINED by the City Council of Biñan in its Regular Session assembled:

SECTION 1. ORGANIZATION OF THE OFFICE OF THE CITY BUILDING OFFICIAL SEPARATE AND DISTINCT FROM THAT OF THE OFFICE OF THE CITY ENGINEER. The Office of the City Building Official is hereby organized into a regular line department, complete with staffing patterns, equipment, and financial resources, and is separate and distinct from that of the Office of the City Engineer, which shall be known and referred to as the "OFFICE OF THE CITY BUILDING OFFICIAL". For this purpose, the Local Chief Executive of his duly authorized representatives are hereby authorized to cause its organizations, including the appointment and hiring of employees.

SECTION 2. ORGANIZATIONAL STRUCTURE. *The Office of the Building Official shall have the following organizational structure:*



To effectively discharge its functions, duties, and responsibilities, the Department of the Building Official shall be composed of the abovementioned staffing pattern by the rules and regulations promulgated by the Civil Service Commission.

SECTION 3. CREATION, COMPOSITION, AND APPOINTMENT IN THE OFFICE OF THE CITY BUILDING OFFICIAL. *There shall be created the following Plantilla Positions and salary grades under the Office of the City Building Official.*

POSITIONS:

A. CITY GOVERNMENT DEPARTMENT HEAD I (SG 25). *The City Building Official. The appointment of the City Building Official shall conform to the provisions of Section 447 of the Local Government Code and shall be confirmed by the City Council of Biñan.*

Salaries & Wages

Salary/annum:	1,330,862.40
Mandatory:	
PERA	48,000.00
13th Month Pay	110,905.00
14th Month Pay	110,905.00
Cash Gift	5,000.00
Life & Ret.	159,703.49
Pag-Ibig	1,800.00
Philhealth	33,271.56
ECC	1,200.00
Total	1,981,647.85

B. ENGINEER I (SG 12)

Salaries & Wages

Salary/annum:	384,984.00
Mandatory:	
PERA	48,000.00
13th Month Pay	32,082.00
14th Month Pay	32,082.00
Cash Gift	5,000.00

Life & Ret.	46,198.08
Pag-Ibig	1,800.00
Philhealth	9,642.60
ECC	1,200.00
Total	560,970.68

C. ADMINISTRATIVE AIDE III (DRIVER I)

Salaries & Wages

Salary/annum:	190,094.24
Mandatory:	
PERA	48,000.00
13th Month Pay	15,841.19
14th Month Pay	15,841.19
Cash Gift	5,000.00
Life & Ret.	22,811.31
Pag-Ibig	1,800.00
Philhealth	4,752.36
ECC	1,200.00
Total	305,340.28

D. ADMINISTRATIVE AIDE II (SG 2)

Salaries & Wages

Salary/annum:	179,094.24
Mandatory:	
PERA	48,000.00
13th Month Pay	14,924.52
14th Month Pay	14,924.52
Cash Gift	5,000.00
Life & Ret.	21,491.31
Pag-Ibig	1,800.00
Philhealth	4,477.36
ECC	1,200.00
Total	290,911.94

SECTION 4. DUTIES AND FUNCTIONS. *The Office of the Building Official shall have the following duties and functions:*

- 1. Be primarily responsible for the enforcement of the provisions of the National Building Code of the Philippines (P.D. 1096) and its Implementing Rules and Regulations, as well as circulars, memoranda, opinions, and decisions/orders issued pursuant thereto. His actions shall be guided by appropriate orders/directives from the DPWH;*
- 2. Have overall administrative control and/or supervision over all works pertinent to buildings/structures in his area of responsibility and shall be charged with the processing of all permit applications and certificates as the issuance of the same;*
- 3. Ensure that all changes, modifications, and alterations in the design plans during the construction phase shall not start until the modified design plan has been evaluated and the necessary amendatory permit issued;*
- 4. Undertake annual inspections of all buildings/structures and keep an up-to-date record of their status;*
- 5. Upon complaint or motu proprio and after due notice/s and hearing, initiate action towards:*

- Non-issuance, suspension, revocation and/or invalidation of a building permit or certificate of occupancy;
 - Issuance of work stoppage order, or an order for discontinuance of the use or occupancy of the building/structure or portion thereof;
 - Declaration of a building/structure as ruinous or dangerous; and/or
 - The imposition of appropriate fines/penalties.
6. Submit a quarterly report to DPWH on the status of all existing, ongoing, and proposed public as well as private building/structure activities;
 7. Undertake such other duties and tasks as may be assigned by DPWH from time to time.
 8. Process and take appropriate action on applications for building permits.
 9. Oversee and ensure the proper implementation of the National Building Code and city ordinances pertaining to buildings and similar structures.
 10. Recommend to the Sangguniang Panlungsod and advise the city mayor on matters involving buildings and similar structures; and
 11. Perform such other duties and functions and exercise such other powers as prescribed for under the Local Government Code of 1991, and those that are prescribed by law or ordinance.

Other Functions of the Office:

- a). Specifically, shall be responsible for the processing and issuance of building, occupancy, and other ancillary permits;
- b). Shall be responsible for inspecting and determining compliance of any building or structure with the requirements of the National Building Code and the terms and conditions provided for in the building permit as issued;
- c). Shall be responsible for stopping any building work found to be contrary to the provisions of the National Building Code and prescribing the terms and conditions when the works will be allowed to resume;
- d). Shall be responsible for discontinuing the occupancy or use of any building or structure or portion thereof found to be occupied or used contrary to the provisions of the National Building Code.
- e). Other tasks as may be directed by the City Mayor.

The prescribed duties, functions, and responsibilities are attached to the said position under the CS Form No. 212- (Revised 2017) of the Human Resource and Management Office:

SECTION 5. QUALIFICATIONS OF THE CITY BUILDING OFFICIAL. A competent person who meets the minimum qualification as provided hereunder shall be appointed by the City Mayor, subject to Civil Service laws, rules, and regulations.

According to Section 206 of P.D. 1096, a City Building Official must be:

1. A Filipino citizen of good moral character;
2. A duly registered architect or civil engineer;
3. A member of good standing of a duly accredited organization of his profession for not less than two (2) years;
4. Has at least five (5) years of diversified and professional experience in building design and construction.

SECTION 6. PLACEMENT OF PERSONNEL: The Manning of the newly created department shall be based on merit and fitness in accordance with the Civil Service Laws, Rules, and Regulations.

SECTION 7. TURNOVER OF DOCUMENTS AND FILES. The Office of the City Engineering is hereby required to turn over all necessary documents, files, and records for the operation of the Office of the City Building Official.

This is based on the prescribed Implementing Rules and Regulations (IRR), Revised Implementing Rules and Regulations (RIRR), and Additional Rules and Regulations (ARR) of PD 1096 otherwise known as the "National Building Code of the Philippines" which was consequently adapted to be more responsive to the needs of the construction industry orders and decisions.

SECTION 8. TRANSITION. To ensure the smooth and expeditious implementation of this Ordinance, the CITY HUMAN RESOURCES AND DEVELOPMENT OFFICE and CITY ENGINEERING OFFICE are hereby designated and ordered to prepare and implement a step-by-step plan for the immediate transition from the old structure to the new rationalized organization. In this regard, it shall closely supervise and properly document the turnover of responsibilities and accountabilities.

SECTION 9. FUNDING AND REMUNERATIONS. The newly created position shall have corresponding salaries and allowances as prescribed by law, as herein stated above. Further, the funds needed for the creation and operation of the Office of the City Building Official, including its staffing pattern, shall be taken from the appropriated budget duly enacted for the purpose and/or succeeding Annual Budget, subject to the provisions of the Local Government Code.

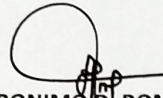
SECTION 10. REPEALING CLAUSE. All City Ordinances, Resolutions, Executive Orders, Memorandum, and Administrative Regulations or part thereof which are inconsistent with any of the provisions of this Ordinance are hereby repealed or modified accordingly.

SECTION 11. SEPARABILITY CLAUSE. If any part or provision of this Ordinance shall be declared invalid, the other portions or provisions hereof which are not affected thereby shall continue in full force and effect.

SECTION 12. EFFECTIVITY CLAUSE. This Ordinance shall take effect upon its approval.

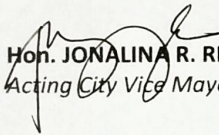
UNANIMOUSLY APPROVED.

CERTIFIED CORRECT:



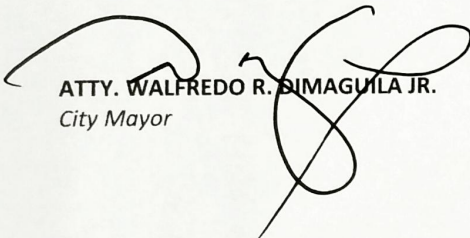
GERONIMO D. ROMANTIGUE, MDMG
City Council Secretary

ATTESTED BY:



Hon. JONALINA R. REYES
Acting City Vice Mayor/Presiding Officer

APPROVED BY:



ATTY. WALFREDO R. DIMAGUILA JR.
City Mayor